Alabama AI Policy Template: Data and Student Privacy Passages

Excerpted verbatim from *AI Policy Template for Local Education Agencies, Version 1.0 (Alabama State Department of Education, June 2024; nonbinding template, Word copy hosted by AI for Education)*. The source has no page numbers; locations are given by section. This is a Word document without page numbers. Ellipses (…) mark omitted text. Bracketed placeholders such as "(replace with the name of LEA)" are in the original template.

Purpose (excerpt)

Source: Word document, section 'Purpose'

This will be achieved by focusing on AI governance, accountability, safety, procurement and implementation, data privacy and security, data quality concerns, bias, responsible use, transparency, access, efficacy, AI knowledge, skills, education, and training.

The AI Pillars are classified into Strategy, Governance, Data Privacy and Security, Procurement, Implementation, Competency Development, Risk Management, and Utility and Effectiveness.

Data Privacy and Security

Source: Word document, section 'Data Privacy and Security'

The (replace with name of LEA) is committed to complying with federal, state, and local laws, rules, and regulations, and other entities that provide standards for compliance to ensure data privacy and security are maintained for data used in AI systems. We will ensure that the Contractor's AI systems comply with all applicable federal, state, and local laws, rules, and regulations, and other entities that provide standards for compliance.

The (replace with the name of LEA) is dedicated to ensuring data to be used in the AI systems will meet the data quality standards established by our Data Governance Committee.

The (replace with the name of LEA) will conduct compliance audits that will be done by our AI Governance Committee and/or the Data Governance Committee. The AI Governance Committee and/or the Data Governance Committee will submit a copy of the audit to our leadership and the respective Contractor(s). We will also ensure that the Contractor(s) provides a Corrective Action Plan (CAP) based on the findings in the audit report that will include the steps the Contractor(s) plans to take to mitigate the findings, and the timeline by which they will be mitigated.

Use of user's data to train new AI Systems: The (replace with the name of LEA) will include in our procurement and contract document(s) verbiage (Appendix A), which the Contractor shall attest when submitting their proposals and any contract executed to perform the work.

AI Procurement (excerpt)

Source: Word document, section 'AI Procurement'

In the procurement process, we will consider cost, data privacy, security, human-in-the-loop development, algorithm bias, model cards, system cards, interoperability, service-level agreements, key performance indicators, customizability, configurability, scalability, legal compliance, and contractor support.

The (replace with the name of LEA) will obtain a written statement from contractor that:

- The AI model(s) have been pretrained and no data is being used to train a model to be used in the development of a new product.

Use of AI Systems (excerpt)

Source: Word document, section 'Use of AI Systems'

- LEAs shall comply with the federal and state laws on the use of cameras with AI systems on campus and in class. Where laws do not provide for tracking student behavior in class and/or in schools using cameras with AI Systems, LEAs shall ensure the AI systems do not track student's behaviors and are not used for profiling students.

Appendix A: Data Usage Restriction Clause

Source: Word document, Appendix A

The Contractor hereby attests and agrees that it is expressly prohibited from using any data provided to it by the data providers—either in its raw form or after undergoing any form of processing, aggregation, or transformation—for the purpose of training a new AI System to be used in a new product, model, service, or offering (collectively referred to as the "Product") of the Contractor. The Contractor further attests and agrees that any violation of this clause will be considered a material breach of this RFP and/or Contract to be entered into by the Contractor, and may result in termination of the Contract, legal action, or both, at the sole discretion of the (name of the LEA).

Notwithstanding the restrictions set forth in Section 1(a) of this Contract, the Contractor may use the data provided by the data providers to:

- Customize the AI System currently in use, which may result in the development of a new AI System.
- Develop a new AI System.

The customization and development of the AI System is expressly required by the (replace with the name of LEA) to meet the specific needs of the School District (the "District-Specific Needs"). Any such use of the data for the District-Specific Needs shall be subject to prior written approval by the (replace with the name of LEA) and shall be carried out in accordance with all applicable laws, regulations, and the terms and conditions of this contract.

The (replace with the name of LEA) shall submit the request in writing for the purpose of Section 1(a). Upon receipt of the request from the (replace with the name of LEA) by the Contractor, the Contractor shall submit to the state, in writing, a Request for Approval (RFA) to use the data for AI System training, details of the data use, and statement of model training completion.

Request for Data use for AI System training: The Contractor shall submit an RFA, in writing, to the (replace with the name of LEA) to use the data provided by the data providers for AI System training.

Details of Data Use: The RFA shall include a comprehensive written explanation that outlines the following, but is not limited to:

- Purpose of data usage.
- Data elements that will be used for the AI System training.

- Duration of data usage.
- The manner the data providers' data will be stored, processed, and secured.
- Name(s) of the individual(s) who will have access to the data.
- The controls in place to prevent unauthorized use.
- Specific types of data that will be used for model training.
- Risks associated with using the data for model training and how these risks will be mitigated.

Statement of Model Training Completion: The statement shall include a comprehensive written explanation that outlines the following, but is not limited to:

- Deletion of training data or training data will be returned by a certain date.
- A statement that no training data has been stored.

Appendix A: AI Model Development and Use Attestation Clause (excerpt)

Source: Word document, Appendix A

Pretrained AI System: The AI System used in the performance of this (replace with the name of procurement document) and/or Contracts have been pretrained. No data provided under this (replace with name of procurement document) and/or Contracts are being used to train an AI System to be used in a new product of the Contractor or any of its partners or affiliates.